

		to be determined in a future motion submitted with a corresponding separate statement. Counsels are ordered to meet and confer to identify a mutually agreeable date for the PMQ deposition, with said deposition to be conducted within 45 days of the Court's ruling. Plaintiff's evidentiary objections are <i>OVERRULED</i>. <i>Counsel for Plaintiff is ordered to give notice.</i>
3.	Deris v. Toyota Motor Sales, U.S.A., Inc. 23-1335810	The Motion to Compel Further Responses to Plaintiff's Request for Production of Documents, Set One ("RFP") filed by Plaintiff Kazem Deris ("Plaintiff") against Defendant Toyota Motor Sales, U.S.A., Inc. ("Defendant" or "Toyota") is GRANTED IN PART and DENIED in part. Plaintiff seeks to compel further responses a number of requests in Request for Production (Set One). The court finds that meet and confer efforts were sufficient and that good cause exists for some of the documents requested by Plaintiff. Defendant has already produced responses to most of the RFPs at issue, however Plaintiff asserts those responses are not code-compliant. As to Nos 1 and 2, though Plaintiff asserts the responses are not code-compliant as they do not indicate that all documents or things demanded will be included in production, both responses indicate that Defendant "will comply with this request in full" by producing the documents listed. Accordingly, responses are sufficient and the motion is DENIED as to RFP Nos 1 and 2. The parties entered into a stipulated protective order and Defendant produced supplemental documents and responses in July, just as this motion was being filed. As Plaintiff's motion does not address those supplemental responses, it is DENIED as to those requests that have since been supplemented, Nos 28 and 29, 89, 91, 92. The Court finds good cause has been shown for some of what is requested as documents related to Defendant's policy and procedures used to evaluate customer requests for repurchase or replacement under the Song Beverly Act would be relevant to Defendant's good faith compliance with said Act. Further, documents related to Defendant's internal analysis or investigation regarding the defects claimed by Plaintiff in vehicles purchased in California for the same year, make and model of the subject vehicle would also be probative of Defendant's good faith compliance with the Act. In addition, documents regarding diagnostic/repair procedures followed is

probative of whether Defendant followed the appropriate repair procedures pertaining to the subject vehicle and whether Defendant had knowledge that the repairs were inadequate.

In addition, evidence of Defendant's knowledge of the claimed defect in other vehicles may prove relevant to Plaintiff's claims. (See *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 973-974, 978-979; see also, *Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 154.)

However, the RFPs at issue are overbroad, particularly as to Plaintiff's definition of "BRAKE DEFECT(S)" and "TRANSMISSION DEFECT(S)". Indeed, per the Declaration of Rosario Stoliker offered in support of the motion, none of the issues identified in the definition of brake defect presented in the Subject Vehicle's repair history. Likewise, a number of the issues identified in the definition of transmission defect were not reasons the Subject Vehicle was presented for repair. Further, the requests are overbroad, requesting "All DOCUMENTS" regarding the defects in vehicles equipped with the same systems as the Subject Vehicle. This should be limited to vehicles purchased or leased in California for the same year, make and model of the Subject Vehicle.

The Court will thus **Grant in Part**, to compel Defendant to respond and produce documents for these RFPs only as to:

- a) Warranty Policy and Procedure Manual or similar policies or claim-handling procedures published by Defendant and provided to its authorized repair facilities, within the State of California, that was/were in place at the time the Subject Vehicle was purchased to the date the lawsuit was filed only if they concern the Subject Vehicle at issue;
- b) Defendant's written statements of policy and/or procedures used to evaluate customer requests for repurchase or replacement pursuant to "Lemon Law" claims, including those brought under the Song-Beverly Consumer Warranty Act, from the date the Subject Vehicle was purchased to the date the lawsuit was filed;
- c) A list or compilation of customer complaints in Defendant's electronically stored information database that are substantially similar to the alleged defects claimed by Plaintiff (1) in vehicles purchased or leased in California, and (2) are the identical year, make, and model of the Subject

Vehicle. A substantially similar customer complaint would be the same nature of reported symptom, malfunction, dashboard indicator light, or other manifestation of a repair problem as the description listed in any work order or repair order for the Subject Vehicle, other than routine or scheduled maintenance items. The list provided by Defendant may be in a chart or spreadsheet format and shall include the VIN, date of repair visit, dealership or other reporting location, and text of the other customers' reported complaint, but shall not include the other customers' names, addresses, phone numbers, e-mail addresses, or other personal identifying information;

- d) TSBs and Recall Notices for vehicles purchased or leased in California for the same year, make and model of the Subject Vehicle;
- e) Copies of any repair instruction, bulletin, or other diagnostic/repair procedure identified in any of the repair order/invoice records for the Subject Vehicle; and
- f) Non-privileged documents concerning any internal analysis or investigation regarding the alleged defects claimed by Plaintiff in vehicles purchased or leased in California for the same year, make and model of the Subject Vehicle.

Good cause has not been shown to compel further document production.

As to Defendant's objections, as discussed above, relevancy has been shown for some of what is requested. Defendant has failed to justify the burdensome/oppressive objection. "An 'objection based upon burden must be sustained by evidence showing the quantum of work required.'" (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) Defendant also failed to establish preliminary facts to support its privilege objections and thus failed to meet its burden. (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 733.)

Defendant is to provide further verified responses and responsive documents in accordance with this ruling, within 45 days. Defendant is also to provide a privilege log for any responsive documents withheld on privilege grounds.

Counsel for Plaintiff is ordered to give notice.

4.	Tran v. Coast Community College District 24-1380332	Before the Court at present is a filing by Plaintiff Tom Tran ("Plaintiff"), identified as a "Motion for Continuance," which asks to continue "the trial date" of November 22, 2024. The Motion is DENIED. Although the Motion asked to continue a pending trial date, no trial date had yet or has yet been set in this case. What was pending on 11/22/24, when this Motion was filed, was a Case Management Conference, which has since been reset for 12/13/24. <u>However, from what has been filed by Plaintiff to date, proper service on the named defendant, identified as "Coast Community College District," still has not occurred.</u> What was filed by Plaintiff on 7/29/24, as ROA 12, does not purport to show service by someone who "is not a party to this action." (See <i>C.C.P. § 414.10</i> ["Any person who is at least 18 years of age and not a party to the action" may serve a summons.] [Emphasis added].) Nor does it identify how service was allegedly effectuated, and on whom. It thus does not demonstrate valid service. The Case Management Conference presently scheduled for 12/13/24 is therefore CONTINUED to January 31, 2025. Although Plaintiff is a self-represented litigant, the court must uniformly apply the procedural and substantive rules of the legal system, even as to a self-represented party. (See <i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1246-1247.) Plaintiff therefore must comply with the applicable requirements of the <i>Code of Civil Procedure</i> (the "C.C.P.") and with the <i>California Rules of Court</i> (the "C.R.C"). He has not adequately done so here. Plaintiff can consult with the court's self-help center if he has any procedural questions about his case. <i>The Clerk is to give notice of this ruling.</i>
5.	Rico Garcia v. Anahop, Inc. 22-1245449	Defendant Anahop, Inc., dba IHOP's ("Defendant") unopposed Motion to Compel Mental Examination ("IME") of plaintiff Francisco Javier Rico Garcia ("Plaintiff") is GRANTED. An IME is a permissible method of discovery where the plaintiff claims mental and/or emotional injuries. (<i>Civ. Proc. Code §§ 2032.310 and 2032.320</i>.) Here, Plaintiff has claimed several past and ongoing mental/emotional injuries that allegedly resulted from the incidents alleged in the Complaint. (Complaint ¶¶ 42, 62, 72, 82, 92, 103, 112, 116-118.) Plaintiff also indicated in response to written discovery that he suffered from mental/emotional injuries due to the alleged facts of this case. (Valenti